Vinod Kumar Agarwal vs The State (Govt Of Nct) Of Delhi on 30 January, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 75/2024
   VINOD KUMAR AGARWAL ...
   Through: Mr. Aditya Jain, Adv.
   versus
   THE STATE (GOVT OF NCT) OF DELHI ...
   Through: Mr. Raghuinder Verma, A
   with SI Dhirender Kan
   Central.
   CORAM:
   HON'BLE MR. JUSTICE VIKAS MAHAJAN
   ORDER

% 30.01.2024 CRL.M.A. 555/2024 (exemption)

1. Allowed, subject to all just exceptions.

2. Application stands disposed of.

3. This is an application filed under Section 438 CrPC seeking anticipatory bail of the petitioner in connection with FIR No. 0024/2023 under Sections 420/120B IPC registered at PS Cyber Police Station Central, New Delhi.

4. The case of the prosecution is that a complaint was made by the complainant that a fraud of Rs. 8,68,123/- has been committed upon him, following which the aforesaid FIR came to be registered. During investigation it was found that the amount of Rs.7,73,323/- from the ICICI Bank and Rs.94,800/- from the Axis Bank of the complainant, were transferred into five bank accounts of the accused persons.

5. It was further found that the mobile number of the petitioner/accused This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/02/2024 at 22:30:36 was found to be connected with the email ID registered in respect of one of the account bearing No.042263300006590 maintained with the Yes Bank.

6. The learned APP for the State submits that the Status Report has already been filed in the Registry.

7. The learned counsel for the petitioner submits that none of the five accounts to which the amount

is alleged to have been transferred belongs to him. He further submits that the aforesaid account maintained with the Yes Bank is not related to him.

8. He submits that the petitioner will cooperate with the investigation and shall submit his mobile, as well as, relevant SIM to the I.O concerned and shall further cooperate in the investigation.

9. In view of the above, it is directed that till the next date no coercive action be taken against the petitioner, subject to his joining investigation as and when required by the I.O concerned.

10. List on 05.03.2024.

VIKAS MAHAJAN, J JANUARY 30, 2024/dss This is a digitally signed order.

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